



U.S. Department
of Transportation

**Federal Highway
Administration**

REQUEST FOR QUOTATION (RFQ) 693JJ326Q000018

AMENDMENT 3*

Issuing Office:

United States Department of Transportation
Federal Highway Administration (FHWA)
Office of Acquisition & Grants Management (HCFA)
1200 New Jersey Avenue, SE
Washington, DC 20590-0001

Agency Contact:

Amy Morrisette, Contracting Officer
Phone: 404-562-3574
Email: amy.morrisette@dot.gov

Title:

Identification of Roadway Design and Infrastructure Factors
Influencing ADAS Systems in Mitigating Rural Roadway
Departure Crashes

Solicitation Release Date:

April 20, 2026

Technical Questions Due Date:

May 4, 2026, by 11:00am Eastern Time (ET)
Questions must be e-mailed to Agency Contact's email at
amy.morrisette@dot.gov

Quotation Due Date:

May 11, 2026, by 11:00am Eastern Time (ET)
Quotes must be e-mailed to both the Agency Contact's email at
amy.morrisette@dot.gov and hccacquisitionsandgrants@dot.gov

Issuance of this solicitation does not guarantee that an award will be made. Any resulting awards are subject to the availability of funding and the discretion of the awarding entity, including cancellation or amendment based on a determination of change in agency needs.

***NOTE: Changes made to the RFQ for Amendment 3 are highlighted in RED font below.**

PART I
RFQ INFORMATION AND INSTRUCTIONS FOR PREPARATION OF QUOTATION

RFQ INFORMATION

This Request for Quotation (RFQ) will result in a Firm-Fixed-Price (FFP) purchase order. It is prepared in accordance with the policies and procedures for solicitation, evaluation, and award as prescribed in Federal Acquisition Regulation (FAR) Part 12, *Acquisition of Commercial Products and Commercial Services* (Overhauled 2025). The solicitation document and incorporated provisions and clauses are those in effect through Federal Acquisition Circular (FAC) 2026-01.

This RFQ is a non-set-aside and the North American Industry Classification System (NAICS) code is **541990 – All Other Professional, Scientific and Technical Services**. A responsible quoter is one whose quotation conforms to the solicitation and will be most advantageous to the Government. It is the vendor's responsibility to be familiar with applicable clauses and provisions. FAR Provisions and Clauses may be viewed and/or downloaded from <http://www.acquisition.gov/far>.

The vendor must have a current active registration in the System for Award Management (www.SAM.gov) at the time of quote submission in order to be eligible to receive an award under this RFQ.

INSTRUCTIONS FOR PREPARATION OF QUOTATION

In responding to this RFQ, the quotation MUST include the following:

1. Technical Quote: Discussion addressing the technical factors below:

Factor 1 – Technical Approach. Discuss the quoter's understanding of the requirements, and proposed approach and management plan to accomplish the work tasks.

MINIMUM ACCEPTABILITY CRITERIA: The Technical Approach contains sufficient detail to determine the quoter provides an acceptable understanding of the requirements and has an acceptable management plan and approach.

Factor 2 – Staffing Approach. Provide a staffing plan that identifies proposed key personnel, and their qualifications, expertise, and education to ensure successful order completion.

MINIMUM ACCEPTABILITY CRITERIA: The Staffing Approach provides the names of key personnel who will perform the key tasks, and sufficient detail to determine the proposed staffing have acceptable expertise and experience to perform the work.

2. Price Quote: Submitted pricing must be for the Contract Line Item Numbers as identified in Part II, Schedule of Services. Vendors must complete the Pricing Schedule which was provided along with the RFQ (see **Attachment 1 – Pricing Worksheet**).

3. **Organizational Information:** The quotation must include the following **mandatory** business information regarding your company in the body of the cover email message:
- a. Confirmation your company accepts government purchase orders
 - b. Business Size (Small, Woman-Owned, Disadvantaged, Hub-Zone, Large, Non-Profit, etc.)
 - c. Payment Terms (Government Standard is NET 30)
 - d. Unique Entity Identifier
 - e. Federal Tax Identification Number (TIN) (9-Digits)
 - f. Correct Mailing Address for the order (include name, telephone, email address);
Note: Mailing address and entity name must match the information in www.sam.gov
 - g. Verification company information listed in the System for Award Management (SAM) current and accurate? <https://www.sam.gov/SAM/>
4. **Past Performance:** Provide examples of recent (within the last five years) and relevant (similar in nature to the requirements of the PWS) past experience performed by the quoter. Each past performance reference must contain contact information (contact name, email address/phone number), business name, total value of the order, period of performance, and description of work performed. If a quoter is without a record of relevant and recent past performance, the quoter will be assigned a neutral or unknown rating. In this Lowest Price Technical Acceptable process, this unknown rating is considered “acceptable”.
5. **Instructions for Preparation of the Quotation:** The quotation must be submitted electronically with the technical and pricing factors submitted in a **SINGLE** email whose size must not exceed 10 Megabytes.
6. **Evaluation of Quotation:** The Government will evaluate the quotation based on **Lowest Price Technical Acceptability (LPTA)**. Under LPTA, the purchase order is awarded to the lowest-priced quote that meets all technical criteria or factors. Technical quotes are rated on an acceptable/unacceptable basis.

NOTE: Failure to furnish **all** information required above may result in your quotation being considered non-responsive and eliminated from further consideration.

PART II
SCHEDULE OF SERVICES

The Schedule of Services is below, and the quoter shall provide a quote utilizing Attachment 1 – Pricing Worksheet.

CONTRACT LINE ITEM (CLIN)	ITEM DESCRIPTION	QUANTITY	UNIT	UNIT PRICE	TOTAL PRICE
00101	Task 1: Attend Kick-Off Meeting Pricing: Firm-Fixed Price Period of Performance: 30 Months from Date of Award	1	EACH	\$0.00	\$0.00
00201	Task 2: Collect, Extract, Integrate, and Evaluate Roadway Geometric Design Elements and Infrastructure Factors Affecting Rwd Avoidance ADASs Pricing: Firm-Fixed Price Period of Performance: 30 Months from Date of Award	1	EACH	\$0.00	\$0.00
00301	Task 3: Develop Technical Report Pricing: Firm-Fixed Price Period of Performance: 30 Months from Date of Award	1	EACH	\$0.00	\$0.00
00401	Task 4: Develop Outreach Materials Pricing: Firm-Fixed Price Period of Performance: 30 Months from Date of Award	1	EACH	\$0.00	\$0.00
TOTAL QUOTED PRICE FOR ALL CLINs					\$0.00

PART III
PERFORMANCE WORK STATEMENT

Identification of Roadway Design and Infrastructure Factors Influencing ADAS Systems in Mitigating Rural Roadway Departure Crashes

1.0 Overview

This is a non-personal services purchase order to provide services for identifying roadway design and infrastructure factors influencing Advanced Driver Assistance Systems (ADASs) in mitigating rural roadway departure crashes. The Government will not exercise any supervision or control over the service providers performing the services herein. The Contractor is responsible to the Government as defined in this Performance Work Schedule (PWS) and must perform to the standards herein.

1.1 Background

The mission of the Federal Highway Administration (FHWA) is to improve safety and mobility on our nation's highways through national leadership, innovation, and program delivery. As part of this mission, FHWA allocates funding to develop and deliver technical assistance, research, data analysis, and training aimed for reducing roadway departure (RwD) crashes and fatalities through the implementation of safety action plans and proven safety countermeasures. With the rapid growth of vehicles with ADASs, it is critical to investigate the infrastructures required to support these systems and to assess their safety effectiveness in reducing RwD crashes.

As human error accounts for more than 90% of traffic crashes, ~~Advanced Driver Assistance Systems (ADASs)~~ are expected to provide significant safety benefits by supporting drivers with timely warnings and/or active interventions, thereby reducing traffic crashes, and migrating the risk of fatal and serious injuries. In recent years, continuous technological advancements, and growing consumer awareness of safety have accelerated adoption of new vehicles equipped with Lane Departure Warning (LDW), Lane Keeping Assistance (LKA), and Lane Centering Assistance (LCA) features as standard. These systems, designed to address RwD crashes, are expected to play a significant role in reducing fatalities and serious injuries associated with such crashes.

However, these expected safety benefits are based on the assumption that roadway geometry and infrastructure factors fully support these technologies, which is not always available. Existing roadway infrastructure, particularly rural roadways, remains insufficient to fully support the functionality and safety potential of evolving ADAS technologies. Many rural roadways lack consistent and well-maintained lane marking, adequate lighting, and uniform signage, which are essential for sensor-based systems to function reliably. In addition, geometric variations such as sharp curves, narrow lane and shoulder widths, and unpaved edges introduce challenges for vehicle detection and control algorithms.

This purchase order aims to investigate and identify roadways characteristics, geometric design, and infrastructure factors necessary to optimize the safety benefits of relevant RwD prevention ADAS technologies for reducing RwD crashes in rural roads. It also quantifies the potential safety benefits

of these systems and identifies corresponding and prioritized infrastructure improvements to maximize those benefits.

1.2 Objective

The objective of this purchase order is to conduct a comprehensive review and assessment of geometric design elements and infrastructure factors that contribute to optimize the performance of Rwd prevention ADAS technologies such as LDW, LKA, and LCA. By systematically reviewing and analyzing these contribution factors, this study seeks to provide evidence-based insights and actionable recommendation to improve roadway geometric design and infrastructure in support of vehicles equipped with these ADAS features, thereby maximizing their safety benefits in reducing Rwd crashes and fatalities, particularly on rural roadways.

This purchase order seeks to support FHWA mission to improve safety on our nation's roadways in accordance with 23 U.S.C. §503(b)(1)(A, B, C & D); 23 U.S.C. §503(b)(2)(B)(i, ii, iii, iv, v & vi); 23 U.S.C. §503(b)(2)(C)(i, ii, iii, vi, & viii); and 23 U.S.C. §503(b)(3)(B)(ii).

1.3 Detailed Requirement

The Contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform this purchase order. Also, project management, administrative support and periodic or recurring progress meetings shall be considered integral to each task as described here in. To accomplish the objectives of this order, the Contractor shall complete the following tasks:

TASK 1: Attend Kick-Off Meeting

The Contractor shall coordinate and facilitate a kick-off meeting with the Technical Point of Contact (TPOC) and others as appropriate within two weeks of award date. The Kick-Off meeting will be held virtually and will discuss the overall project to ensure that desired outcomes are understood and achieved. The Contractor shall prepare a draft work plan that is consistent with the technical quote, and provide a detailed schedule of milestones and deliverables. The Contractor shall send the draft agenda, presentation, and work plan to the TPOC one-week in advance of the kick-off meeting, at the latest, for review. After the kick-off meeting, the Contractor shall - submit a revised final work plan and work breakdown structure that incorporates comments and feedback provided from FHWA. In addition, the Contractor shall arrange bi-weekly check-in meetings with TPOC and FHWA's stakeholders to discuss the progress, possible risks, and comments under this order.

Deliverables:

- Kick-Off Meeting Agenda, Draft work Plan and Draft Kick-off Meeting presentation
- Kick-Off Meeting
- Kick-Off Meeting Summary Note
- Revised Work Plan
- Bi-weekly Check-in Meeting
- Bi-weekly Check-in Meeting Summary Note
- Quarterly Progress Report

TASK 2: Collect, Extract, Integrate, and Evaluate Roadway Geometric Design Elements and Infrastructure Factors Affecting Rwd Avoidance ADASs

The Contractor shall conduct a comprehensive data-driven process to collect, extract, integrate, and analyze various data from various resources including, but are not limited to, geometric design elements, infrastructure features, historical crash data and vehicle trajectory data to identify and evaluate factors affecting the safety performance of Rwd avoidance ADAS features on rural roads.

The Contractor shall identify, extract and compile roadway geometric design elements and infrastructure features that are potentially associated with operational effectiveness of Rwd prevention ADAS features, which may include, but are not limited to, horizontal and vertical alignment characteristics, advanced signs and delineation, pavement and longitudinal markings (e.g., color, function, widths and patterns), roadside features, lane configuration, shoulder and median features, etc. through the integrated use of Geographic Information System (GIS) and image-based feature extraction processes. The Contractor shall use roadway map resource incorporating the Highway Performance Monitoring Systems (HPMS), or All Road Network of Linear Reference Data (ARNOLD), or comparable GIS-based Linear Reference System (LRS) developed and maintained by Federal and State agencies to ensure consistent spatial alignment and accurate location referencing across roadway networks.

The Contractor's proposed and performed image-based feature extraction process shall employ vision technologies (e.g., aerial or street-level imagery) to detect, classify, assess, and extract roadway geometric design and infrastructure attributes. Furthermore, the extracted roadway and infrastructure attributes must be integrated with the GIS LRS framework, enabling a repeatable and scalable workflow that accurately assigns spatial attributes along roadways.

The contractor shall also collect historical crashes occurred on rural roads, including vehicle VIN information ~~from~~ at least four (4) States. ~~Since 2018, FHWA requires the use of~~ FHWA requires crash data for each year over the past five (5) years ~~(since 2018).~~ FHWA requires the use of a NHTSA VIN Decoder API or a similar tool to decode the VIN to distinguish between vehicles equipped with and without Rwd prevention ADASs. During this process, if necessary, the FHWA TPOC can provide decoded individual vehicle VIN information along with crash database (crash, vehicle and person data) collected from multiple States to support this project. However, this information must be used solely for this project. As with the previous process, the Contractor shall integrate the historical crash location into a GIS LRS framework using the crash XY-coordinates of the individual crash location. The Contractor shall conduct a safety analysis to identify and quantify the roadway geometric design and infrastructure factors that affect crash frequency and severities for vehicles equipped with Rwd avoidance ADAS features. The analysis shall also include differences in safety performance between vehicles equipped with Rwd avoidance ADAS features and those without, based on roadway geometric design, infrastructure characteristics and relevant situation factors.

To support successful execution of the project, the Contractor shall develop and present a detailed data-driven plan outlining the proposed data collection, extraction, integration, analysis and evaluation processes to TPOC and FHWA Technical Advisory Panel ~~(TAP)~~. The study plan shall describe data sources, methodologies, quality control procedures, analytical approaches, limitations, and anticipated deliverables, and shall be submitted for FHWA review and approval prior to

conduct.

Deliverables:

- Detailed Data-Driven and Analysis Plan Draft and presentation
- Revised Data-Driven and Analysis Plan Draft and presentation
- Data-Driven and Analysis Plan Presentation
- Monthly Data-Driven and Analysis Progress Update

TASK 3: Develop Technical Report

The Contractor shall develop and submit a technical report, including an outline enumerating the needs of this effort. The Contractor shall prepare a comprehensive outline of the technical report first, and then revise it after FHWA review to reflect comments or inputs from the TPOC and the FHWA technical panel. With approval of the final outline, the Contractor shall develop and submit the first draft of final technical report for review by the TPOC and FHWA technical review panels. The contractor shall use plain language and advice novice for the report¹. The TPOC will submit consolidated comments for the contractor to address in a second draft report. The contractor shall address any remaining technical comments and prepare a third draft for review by FHWA Office of Safety R&D leadership and the Office of the Chief Counsel (if needed). The Contractor shall also prepare a presentation material on the findings and contents of the final report and present it to TPOC and FHWA technical panels.

The Contractor shall clearly address all received comments and prepare a final draft report for Public Affairs review and approval. After public affairs approval, the Contractor shall submit the final report in both Microsoft Word and Google document/platform formats. All final deliverables must be 508-conformant. The Contractor shall also submit all project related documentation, collected raw and compiled data files, including source code, metadata, and data dictionaries, to TPOC.

Deliverables:

- Draft of Technical Report Outline
- Revised Technical Report Outline
- First Draft Technical Report
- Second Draft Technical Report
- Third Draft Technical Report
- Final Draft Technical Report (for Office of Chief Counsel [HCC] and Office of Public Affairs [HPA] review)
- Draft Presentation material
- Revised Presentation material
- Final Deliverables

TASK 4: Develop Outreach Materials

The Contractor shall develop marketing and outreach materials to promote findings of this research which may include a peer-reviewed journal/conference paper or a webinar. For this, the Contractor shall develop a draft journal/conference paper and submit it to the TPOC for review. The Contractor shall submit a final paper that incorporates the TPOC's comments and edits, which will then be

¹ <http://www.plainlanguage.gov>

reviewed and approved by HCC and HPA for publication.

Deliverables:

- Draft Journal/Conference Paper or Webinar Presentation PPT
- Final Journal/Conference Paper or Webinar Presentation PPT
- Final Technical Report

2.0 Period of Performance

The period of performance for this purchase order shall be for 30 months that consists of 24 months for project completion and 6 months for HCC and HPA review of the paper. The Contractor shall notify the Contracting Officer (CO) and TPOC in writing when a delay threatens to exceed the period of performance. As part of the notification, the Contractor shall provide a revised schedule for performing the order's requirements.

3.0 General

3.1 Place of Performance

The work will be performed at the Contractor's facility.

3.2 Physical Security

The Contractor shall be responsible for safeguarding all government equipment, information, and property provided for Contractor use.

3.3 Periodic Progress Meetings

The Contractor agrees to attend progress meetings. The TPOC and other Government personnel, as appropriate, may meet periodically with the Contractor to review the Contractor's performance. At these meetings, the TPOC will apprise the Contractor of how the government views the Contractor's performance and the Contractor will apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the government.

3.4 Identification of Contractor Employees

All contractor personnel attending meetings and working in other situations where their contractor status is not obvious to third parties are required to identify themselves as such to avoid creating an impression in the minds of members of the public that they are Government officials. They must also ensure that all documents or reports produced by Contractors are suitably marked as Contractor products or that Contractor participation is appropriately disclosed.

3.5 Contractor-Provided Material(s)

~~This project necessitates the use of the Google Map Platform. Google Maps Platform is suggested but not required for this project. If the Contractor does not currently have access, they must purchase a monthly subscription from Google. All subscription costs for Google Map Platform must be included in the Contractor's price quote.~~ As this is a firm-fixed-price purchase order, the Government will **not** reimburse the Contractor for **costs including materials, equipment, and third-**

party fees like the Google Map Platform ~~costs~~.

3.6 Organizational Conflict of Interest

The Contractor and subcontractor personnel performing work under this award may receive, have access to, or participate in the development of proprietary or source selection information (e.g., cost or pricing information, budget information or analyses, specifications or work statements, etc.), or perform evaluation services which may create a current or subsequent Organizational Conflict of Interests (OCI) as defined in FAR Subpart 9.5. The Contractor shall notify the CO immediately whenever he/she becomes aware that such access or participation may result in any actual or potential OCI, and may merit the submittal of a plan to the CO to avoid or mitigate any such OCI. This mitigation plan would be determined to be acceptable solely at the discretion of the CO, and in the event the CO unilaterally determines that any such OCI cannot be satisfactorily avoided or mitigated, the CO may effect other remedies as he or she deems necessary, including prohibiting the Contractor from participation in subsequent contracted requirements which may be affected by the OCI.

3.7 Data Rights

Data Rights shall be executed in accordance with the relevant clauses and provisions in the purchase order.

4.0 Applicable Publications (Current Editions)

The Contractor must abide by the following regulations, publications, manuals, and local policies and procedures. TFHRC Communication Reference Guide (CRG) –

<https://www.fhwa.dot.gov/publications/research/general/15058/15058.pdf>

5.0 Technical Exhibit List

- Technical Exhibit 1 - Performance Requirements Summary
- Technical Exhibit 2 - Deliverables Schedule

TECHNICAL EXHIBIT 1

Performance Requirements Summary (PRS)

The Contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success.

Performance Objective	Performance Standard	Performance Threshold (This is the maximum error rate.)	Method of Surveillance
PRS # 1. Task 1 – Attend Kick-Off Meeting	The Contractor provided: - Kick-Off meeting agenda, draft work plan and draft kick-off meeting presentation - Kick-Off meeting - Kick-off meeting summary memo - Revised work plan - Bi-weekly check-in meeting - Bi-weekly check-in meeting summary note - Quarterly progress report	- No technical and grammatical errors in documents	100% Review by the TPOC
PRS # 2 Task 2 – Collect, Extract, Integrate and Evaluate Roadway Geometric Design Elements and Infrastructure Factors Affecting Rwd Avoidance ADAS ^s	The Contractor provided: - Detailed data-driven and analysis plan draft and presentation - Revised data-driven and analysis draft and presentation - Data-driven and analysis plan presentation - Monthly data-driven and analysis progress update	- Acceptable quality assessment and control for data-driven and collection - Consensus among TPOC, FHWA technical panels and contractor - No technical and grammatical errors in documents and presentations	100% Review by the TPOC

Performance Objective	Performance Standard	Performance Threshold (This is the maximum error rate.)	Method of Surveillance
PRS # 3 Task 3 – Develop Technical Report	The Contractor provided: - Draft of technical report outline - Revised technical report outline - First draft technical report - Second draft technical report - Third draft technical report - Final draft technical report (for Office of Chief Counsel [HCC] and Office of Public Affairs [HPA] review) - Draft presentation - Revised presentation - Final deliverables	- No technical and grammatical errors in documents and presentations	100% Review by the TPOC
PRS # 4 Task 4 – Develop Outreach Materials	The Contractor provided: - Draft journal/conference paper or webinar presentation - Final journal/conference paper or Webinar presentation	- No technical and grammatical errors in documents and presentations	100% Review by the TPOC

TECHNICAL EXHIBIT 2

DELIVERABLES SCHEDULE

This technical exhibit lists any reports or documentation that is required as a deliverable to include the frequency, # of copies, medium/format and who/where it is to be submitted. A deliverable is anything that can be physically delivered but may include non-physical things such as meeting minutes. Note: If necessary, the due dates in the “Due Date” column may be changed with concurrence from both the TPOC and the Contractor.

<u>Task Number</u>	<u>Deliverable</u>	<u>508 Compliance</u>	<u>Due Date</u> (from date of award/contract start)	<u>Medium/Format</u>	<u>Submit To</u>
Task 1	Kick-Off Meeting Agenda, draft work plan and draft kick-off meeting presentation	No	At least 3 business days before kick-off meeting	Virtual	TPOC
	Kick-Off Meeting	No	Within 2 weeks after the award	MS Word, PDF, Google Docs	TPOC
	Kick-Off Meeting Summary Note	No	Within 3 days after kick-off meeting	MS Word, PDF, Google Docs	TPOC
	Revised Project Work Plan	No	Within 2 weeks after TPOC provides comments	MS Word, PDF, Google Docs	TPOC
	Bi-weekly check-in meetings	No	Bi-weekly	MS Word, PDF, Google Docs	TPOC
	Bi-weekly check-in meeting summary note	No	Within 3 days after each Bi-weekly meeting	MS Word, PDF, Google Docs	TPOC
	Quarterly progress reports	No	Every Quarter	MS Word, PDF, Google Docs	TPOC
Task 2	Detailed data-driven and analysis plan draft and presentation PPT	No	Within 16 weeks after the award	MS PPT, Google Docs	TPOC

<u>Task Number</u>	<u>Deliverable</u>	<u>508 Compliance</u>	<u>Due Date</u> (from date of award/contract start)	<u>Medium/Format</u>	<u>Submit To</u>
	Revised data-driven and analysis plan draft and presentation plan PPT	No	Within 2 weeks after TPOC provides comments	MS PPT, Google Docs	TPOC
	Data-Driven and Analysis Plan presentation	No	Within 20 weeks after the award	MS Word, PPT, Google Docs	TPOC
	Monthly data-driven and analysis progress update	No	Monthly	MS Word, Google Docs	TPOC
Task 3	Draft of Technical Report Outline	No	Within 68 weeks after the award	MS Word, Google Docs	TPOC
	Revised Technical Report Outline	No	Within 2 weeks after TPOC provides comments	MS Word, Google Docs	TPOC
	First Draft Technical Report	No	Within 84 weeks after the award	MS Word, Google Docs	TPOC
	Second Draft Technical Report	No	Within 2 weeks after TPOC provides comments	MS Word, Google Docs	TPOC
	Third Draft Technical Report	Yes	Within 2 weeks after TPOC provides comments	MS Word, Google Docs	TPOC
	Final Draft Technical Report (for HCC and HPA review)	Yes	Within 96 weeks after the award	MS Word, Google Docs	TPOC
	Draft Presentation PPT	No	Within 92 weeks after the award	MS PPT, Google Docs	TPOC
	Revised Presentation PPT and Presentation	Yes	Within 2 weeks after TPOC provides comments	MS PPT and Google Platform	TPOC

<u>Task Number</u>	<u>Deliverable</u>	<u>508 Compliance</u>	<u>Due Date</u> (from date of award/contract start)	<u>Medium/Format</u>	<u>Submit To</u>
	Final Deliverables	Yes	Within 120 weeks after the award	MS Word, Excel, MS PPT, Google Docs, and dB	TPOC
Task 4	Draft Presentation PPT and/or Journal Article	No	Within 100 weeks after the award	MS Word, MS PPT, Google Docs	TPOC
	Final Presentation PPT and/or Journal Article	Yes	Within 2 weeks after TPOC provides comments, and 120 weeks after the award	MS Word, PPT, Google Docs	TPOC
	Final Technical Report	Yes	Within 120 weeks after the award	MS Word, Google Docs	TPOC

PART IV
FEDERAL ACQUISITION REGULATION (FAR) AND TRANSPORTATION
ACQUISITION REGULATION (TAR) PROVISIONS AND CLAUSES

FAR & TAR PROVISIONS INCORPORATED BY REFERENCE

52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at <https://www.acquisition.gov/far>

- 52.204-7 System for Award Management (Nov 2024)
- 52.204-16 Commercial and Government Entity Code Reporting (Aug 2020)
- 52.212-1 Instructions to Offerors -- Commercial Products and Commercial Services (Sep 2023)
- 52.212-3 Offeror Representations and Certifications -- Commercial Products and Commercial Services (Oct 2025)
- 1252.239-71 Information Technology Security Plan and Accreditation (Nov 2022)

FAR & TAR PROVISIONS IN FULL TEXT

- 52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment (Nov 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) Definitions. As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition. (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) Representation. The Offeror represents that—

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures. (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

1252.237-71 Certification of Data (Nov 2022)

NOTICE: The Secretary of Transportation has determined that this certification shall be retained in accordance with Section 4301(b)(1)(B)(i)(II) of the Federal Acquisition Reform Act (Public Law 104-106, 41 U.S.C. 425, note) and DOT Memorandum dated July 17, 1996.

- (a) The offeror represents and certifies that to the best of its knowledge and belief, the information and/or data (e.g., company profile; qualifications; background statements; brochures) submitted with its offer is current, accurate, and complete as of the date of its offer.
- (b) The offeror understands that any inaccurate data provided to the Department of Transportation may subject the offeror, its subcontractors, its employees, or its representatives to: (1) prosecution for false statements pursuant to 18 U.S.C. 1001 and/or; (2) enforcement action for false claims or statements pursuant to the Program Fraud Civil Remedies Act of 1986, 31 U.S.C. 3801-3812 and 49 CFR Part 31 and/or; (3) termination for default under any contract resulting from its offer and/or; (4) debarment or suspension.
- (c) The offeror agrees to obtain a similar certification from its subcontractors.

Signature: _____

Date: _____

Typed Name and Title: _____

Company Name: _____

This certification concerns a matter within the jurisdiction of an agency of the United States and the making of a false, fictitious, or fraudulent certification may render the maker subject to prosecution under 18 U.S.C. 1001.

(End of provision)

***End of provisions**

FAR CLAUSES INCORPORATED BY REFERENCE

52.252-2 Clauses Incorporated by Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at <https://www.acquisition.gov/far>

52.204-13 System for Award Management Maintenance (Oct 2018)

52.204-18 Commercial and Government Entity Code Maintenance (Aug 2020)

52.212-4 Alt 1. Contract Terms and Conditions - Commercial Items (Nov 2023)

~~52.222-21 Prohibition of Segregated Facilities (Apr 2015)~~

52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)

TAR CLAUSES INCORPORATED BY REFERENCE

The following TAR clauses are incorporated by reference. The full text of the clauses can be accessed electronically at <https://www.acquisition.gov/tar>

1252.222-70 Strikes or Picketing Affecting Timely Completion of the Contract Work
(Nov 2022)

1252.223-71 Accident and Fire Reporting (Nov 2022)

1252.223-73 Seat Belt Use Policies and Programs (Nov 2022)

1252.237-73 Key Personnel (Nov 2022)

1252.242-72 Dissemination of Contract Information (Nov 2022)

FAR & TAR CLAUSES IN FULL TEXT

52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services (Mar 2026)

(a) The Contractor *shall* comply with the following Federal *Acquisition* Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to *acquisitions of commercial products and commercial services*:

- (1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (2) 52.204-23, Prohibition on *Contracting* for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).
- (3) 52.204-25, Prohibition on *Contracting* for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (4) 52.209-10, Prohibition on *Contracting* with Inverted Domestic Corporations (Nov 2015).
- (5) 52.232-40, Providing Accelerated Payments to *Small Business Subcontractors* (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).
- (6) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).
- (7) 52.233-4, Applicable Law for Breach of Contract *Claim* (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor *shall* comply with the FAR clauses in this paragraph (b) that the *Contracting Officer* has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to *acquisitions of commercial products and commercial services*:

[*Contracting Officer check as appropriate.*]

___ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with *Alternate I* (Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

___ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).

___ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

X (4) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR 3.900(a).

X (5) ~~52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).~~

___ (6) [Reserved].

___ (7) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

___ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

___ X (9) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

___ (10) 52.204-28, Federal *Acquisition* Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide *Acquisition* Contracts, and Multi-Agency Contracts. (Dec 2023) (Pub. L. 115-390, title II).

___ (11) (i) 52.204-30, Federal *Acquisition* Supply Chain Security Act Orders—Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

___ (ii) *Alternate I* (Dec 2023) of 52.204-30.

~~___ X (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors—Debarred, Suspended, Proposed for *Debarment*, or Voluntarily Excluded. (Jan 2025)—(31 U.S.C. 6101 note).~~

___ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).

___ (14) [Reserved].

___ (15) 52.219-3, Notice of *HUBZone* Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a).

___ (16) 52.219-4, Notice of Price Evaluation Preference for *HUBZone* Small Business Concerns (Oct 2022) (if the *offeror* elects to waive the preference, it *shall* so indicate in its *offer*) (15 U.S.C. 657a).

___ (17) [Reserved]

___ (18) (i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

___ (ii) *Alternate I* (Mar 2020) of 52.219-6.

___ (19) (i) 52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

___ (ii) *Alternate I* (Mar 2020) of 52.219-7.

___ (20) 52.219-8, Utilization of Small Business Concerns (Jan 2025)(15 U.S.C. 637(d)(2) and (3)).

___ (21) (i) 52.219-9, Small Business Subcontracting Plan (Jan 2025) (15 U.S.C. 637(d)(4)).

___ (ii) *Alternate I* (Nov 2016) of 52.219-9.

___ (iii) *Alternate II* (Nov 2016) of 52.219-9.

___ (iv) *Alternate III* (Jun 2020) of 52.219-9.

___ (v) *Alternate IV* (Jan 2025) of 52.219-9.

- __ (22) (i) 52.219-13, Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).
- __ (ii) *Alternate I* (Mar 2020) of 52.219-13.
- __ (23) 52.219-14, Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).
- __ (24) 52.219-16, Liquidated Damages—Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).
- __ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).
- X (26) (i) 52.219-28, Postaward Small Business Program Rerepresentation (Jan 2025) (15 U.S.C. 632(a)(2)).
- __ (ii) *Alternate I* (Mar 2020) of 52.219-28.
- __ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged *Women-Owned Small Business Concerns* (Oct 2022) (15 U.S.C. 637(m)).
- __ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).
- __ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C. 644(r)).
- __ (30) 52.219-33, Nonmanufacturer Rule (Sep 2021) (15 U.S.C. 637(a)(17)).
- X (31) 52.222-3, Convict Labor (Jun 2003) (E.O. 11755).
- __ (32) 52.222-19, Child Labor—Cooperation with Authorities and Remedies (Mar 2026)(E.O. 13126).
- __ (33) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).
- ~~__ X (34) (i) 52.222-26, Equal Opportunity (Sep 2016) (E.O. 11246).~~
- __ (ii) *Alternate I* (Feb 1999) of 52.222-26.
- __ (35) (i) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).
- __ (ii) *Alternate I* (Jul 2014) of 52.222-35.
- __ (36) (i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).
- __ (ii) *Alternate I* (Jul 2014) of 52.222-36.
- __ (37) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).
- ~~__ X (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec-2010) (E.O. 13496).~~
- X (39) (i) 52.222-50, Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).

- __ (ii) *Alternate I* (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- __ (40) 52.222-54, Employment Eligibility Verification (Jan 2025) (Executive Order 12989). (Not applicable to the *acquisition* of commercially available off-the-shelf items or certain other types of *commercial products* or *commercial services* as prescribed in FAR 22.1803.)
- __ (41) (i) 52.223-9, Estimate of Percentage of *Recovered Material* Content for EPA–Designated Items (*May* 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the *acquisition* of commercially available off-the-shelf items.)
- __ (ii) *Alternate I* (*May* 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the *acquisition* of commercially available off-the-shelf items.)
- __ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (*May* 2024) (42 U.S.C. 7671, *et seq.*).
- __ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (*May* 2024) (42 U.S.C. 7671, *et seq.*).
- __ (44) 52.223-20, Aerosols (*May* 2024) (42 U.S.C. 7671, *et seq.*).
- __ (45) 52.223-21, Foams (*May* 2024) (42 U.S.C. 7671, *et seq.*).
- __ (46) 52.223-23, *Sustainable Products and Services* (*May* 2024) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).
- __ (47)(i) 52.224-3 Privacy Training (Jan 2017) (5 U.S.C. 552 a).
- __ (ii) *Alternate I* (Jan 2017) of 52.224-3.
- __ (48)(i) 52.225-1, Buy American-*Supplies* (Oct 2022) (41 U.S.C. chapter 83).
- __ (ii) *Alternate I* (Oct 2022) of 52.225-1.
- __ (49)(i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).
- __ (ii) *Alternate I* [Reserved].
- __ (iii) *Alternate II* (Jan 2025) of 52.225-3.
- __ (iv) *Alternate III* (Feb 2024) of 52.225-3.
- __ (v) *Alternate IV* (Oct 2022) of 52.225-3.
- __ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).
- _X (51) 52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.’s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- __ (52) 52.225-26, Contractors Performing Private Security Functions Outside the *United States* (Oct 2016) (Section 862, as amended, of the *National Defense Authorization Act for Fiscal*

Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

___ (53) 52.226-4, Notice of Disaster or *Emergency* Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

___ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or *Emergency* Area (Nov 2007) (42 U.S.C. 5150).

_X (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (*May 2024*) (E.O. 13513).

___ (56) 52.229-12, Tax on Certain Foreign *Procurements* (Feb 2021).

___ (57) 52.232-29, Terms for Financing of Purchases of *Commercial Products* and *Commercial Services* (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

___ (58) 52.232-30, Installment Payments for *Commercial Products* and *Commercial Services* (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

_X (59) 52.232-33, Payment by *Electronic Funds Transfer-System for Award Management* (Oct2018) (31 U.S.C. 3332).

___ (60) 52.232-34, Payment by *Electronic Funds Transfer-Other than System for Award Management* (Jul 2013) (31 U.S.C. 3332).

___ (61) 52.232-36, Payment by Third Party (*May 2014*) (31 U.S.C. 3332).

___ (62) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).

___ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

___ (64) 52.242-5, Payments to *Small Business Subcontractors* (Jan 2017) (15 U.S.C. 637(d)(13)).

___ (65) (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

___ (ii) *Alternate I* (Apr 2003) of 52.247-64.

___ (iii) *Alternate II* (Nov 2021) of 52.247-64.

(c) The Contractor *shall* comply with the FAR clauses in this paragraph (c), applicable to *commercial services*, that the *Contracting Officer* has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to *acquisitions of commercial products and commercial services*:

[*Contracting Officer check as appropriate.*]

___ (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

___ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (*May 2014*) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

___ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and *Option Contracts*) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

___ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (*May 2014*) (29U.S.C.206 and 41 U.S.C. chapter 67).

___ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (*May 2014*) (41 U.S.C. chapter 67).

___ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (*May 2014*) (41 U.S.C. chapter 67).

___ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (*Jan 2022*).

___ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (*Jan 2022*) (E.O. 13706).

___ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (*Jun 2020*) (42 U.S.C. 1792).

___ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (*Jan 2025*) (49 U.S.C. 40118(g)).

(d) *Comptroller General Examination of Record*. The Contractor *shall* comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the *simplified acquisition threshold*, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the *United States*, or an authorized representative of the Comptroller General, *shall* have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor *shall* make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated *shall* be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of *claims* arising under or relating to this contract *shall* be made available until such appeals, litigation, or *claims* are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for *commercial products* or commercial services. Unless otherwise indicated below, the extent of the flow down *shall* be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (*Nov 2021*) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (*Nov 2023*) (41 U.S.C. 4712).

- (iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (iv) 52.204-23, Prohibition on *Contracting* for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).
- (v) 52.204-25, Prohibition on *Contracting* for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (vi) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).
- (vii)(A) 52.204-30, Federal *Acquisition* Supply Chain Security Act Orders—Prohibition. (Dec 2023) (Pub. L. 115-390, title II).
- (B) *Alternate I* (Dec 2023) of 52.204-30.
- (viii) 52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that *offer* further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor *must* include 52.219-8 in lower tier subcontracts that *offer* subcontracting opportunities.
- (ix) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).
- (x) 52.222-26, Equal Opportunity (Sep 2016) (E.O. 11246).
- (xi) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).
- (xii) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).
- (xiii) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).
- (xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.
- (xv) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).
- (xvi)(A) 52.222-50, Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).
- (B) *Alternate I* (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- (xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (*May* 2014) (41 U.S.C. chapter 67).
- (xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (*May* 2014) (41 U.S.C. chapter 67).
- (xix) 52.222-54, Employment Eligibility Verification (Jan 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(xxii)

(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) *Alternate I* (Jan 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the *United States* (Oct 2016) (Section 862, as amended, of the *National Defense Authorization Act* for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to *Small Business Subcontractors* (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor *may* include in its subcontracts for *commercial products* and *commercial services* a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

Alternate I (Feb 2000). As prescribed in 12.301 (b)(4)(i), delete paragraph (d) from the basic clause, redesignate paragraph (e) as paragraph (d), and revise the reference to "paragraphs (a), (b), (c), or (d) of this clause" in the redesignated paragraph (d) to read "paragraphs (a), (b), and (c) of this clause".

Alternate II (Oct 2025). As prescribed in 12.301 (b)(4)(ii), substitute the following paragraphs (d)(1) and (e)(1) for paragraphs (d)(1) and (e)(1) of the basic clause as follows:

(d)(1) The Comptroller General of the United States, an appropriate Inspector General appointed under section 3 or 8 G of the Inspector General Act of 1978 (5 U.S.C. App.), or an authorized representative of either of the foregoing officials *shall* have access to and right to—

(i) Examine any of the Contractor's or any subcontractors' records that pertain to, and involve transactions relating to, this contract; and

(ii) Interview any officer or employee regarding such transactions.

(e)(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), and (c), of this clause, the Contractor is not required to flow down any FAR clause in a subcontract for *commercial*

products or commercial services, other than—

(i) *Paragraph (d) of this clause.* This paragraph flows down to all subcontracts, except the authority of the Inspector General under paragraph (d)(1)(ii) does not flow down; and

(ii) *Those clauses listed in this paragraph (e)(1).* Unless otherwise indicated below, the extent of the flow down *shall* be as required by the clause-

(A) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(B) 52.203-15, Whistleblower Protections Under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5).

(C) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712).

(D) 52.204-23, Prohibition on *Contracting* for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(E) 52.204-25, Prohibition on *Contracting* for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(F) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(G) (1) 52.204-30, Federal *Acquisition* Supply Chain Security Act Orders— Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

(2) Alternate I (Dec 2023) 52.204-30.

(H) 52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that *offer* further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor *must* include 52.219-8 in lower tier subcontracts that *offer* subcontracting opportunities.

(I) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).

(J) 52.222-26, Equal Opportunity (Sep 2016) (E.O. 11246).

(K) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(L) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(M) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(N) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

(O) (1) 52.222-50, Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).

(2) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(P) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (*May* 2014)

(41 U.S.C. chapter 67).

(Q) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (*May* 2014) (41 U.S.C. chapter 67).

(R) 52.222-54, Employment Eligibility Verification (Jan 2025) (Executive Order 12989).

(S) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(T) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(U) (1) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

 (2) Alternate I (Jan 2017) of 52.224-3.

(V) 52.225-26, Contractors Performing Private Security Functions Outside the *United States* (Oct 2016) (Section 862, as amended, of the *National Defense Authorization Act* for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(W) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations. (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(X) 52.232-40, Providing Accelerated Payments to *Small Business Subcontractors* (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(Y) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(Z) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

Parent topic: 52.212 [Reserved]

(End of clause)

52.222-90 Addressing DEI Discrimination by Federal Contractors (Apr 2026)

(a) *Definitions*. As used in this clause—

Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (e.g., vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

- (1) The Contractor will not engage in any racially discriminatory DEI activities;
- (2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;
- (3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;
- (4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and
- (5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.
- (6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).

(c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.

(End of clause)

1252.237-72 Prohibition on Advertising (Nov 2022)

The contractor or its representatives (including training instructors) shall not advertise or solicit business from attendees for private, non-Government training during contracted-for training sessions. This prohibition extends to unsolicited oral comments, distribution or sales of written materials, and/or sales of promotional videos or audio tapes. The contractor agrees to insert this clause in its subcontracts.

(End of clause)

LOCAL CLAUSE IN FULL TEXT

INVOICE INSTRUCTIONS

1252.232-70 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (NOV 2022)

(a) Definitions. As used in this clause—

- (1) Contract financing payment has the meaning given in FAR 32.001.
- (2) Payment request means a bill, voucher, invoice, or request for contract financing payment or invoice payment with associated supporting documentation. The payment request must comply with the requirements identified in FAR 32.905(b), “Content of

- Invoices,” this clause, and the applicable Payment clause included in this contract.
- (3) Electronic form means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in paragraph of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests.
 - (4) Invoice payment has the meaning given in FAR 32.001.
 - (b) Electronic payment requests. Except as provided in paragraph (e) of this clause, the Contractor shall submit payment requests in electronic form. Purchases paid with a Governmentwide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.
 - (c) The Department of Transportation utilizes the Delphi eInvoicing web-portal for processing invoices. For vendors submitting invoices, and certain grantees submitting payment requests, they will be required to submit invoices via Delphi eInvoicing which is accessed and authenticated via www.login.gov
 - (d) In order to receive payment and in accordance with the Prompt Payment Act, all invoices submitted as attachments in the Delphi eInvoicing web-portal shall contain the following:
 - (1) Invoice number and invoice date.
 - (2) Period of performance covered by invoice.
 - (3) Contract number and title.
 - (4) Task/Delivery Order number and title (if applicable).
 - (5) Amount billed (by CLIN), current and cumulative.
 - (6) Total (\$) of billing.
 - (7) Cumulative total billed for all contract work to date.
 - (8) Name, title, phone number, and mailing address of person to be contacted in the event of a defective invoice.
 - (9) Travel. If the contract includes allowances for travel, all invoices which include charges pertaining to travel expenses will catalog a breakdown of reimbursable expenses with the appropriate receipts to substantiate the travel expenses.

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(10) The following statement “The Contractor certifies that, by submitting this invoice to the Government, the supplies and/or services billed have been shipped, rendered, or delivered in accordance with instructions issued by the ordering officer; that they are reflected in the quantities and/or period of performance stated on the invoice; and that such supplies and/or services conform to the quantity and quality requirements specified in the applicable contract, order, or blanket purchase agreement.

Furthermore, pursuant to Executive Order 14173, Ending Illegal Discrimination And Restoring Merit-Based Opportunity, the Contractor certifies that it is in compliance with the Equal Protection principles of the Constitution and all applicable Federal anti-discrimination laws, and acknowledges that such compliance is material to the Government’s payment decision under the False Claims Act (31 U.S.C. § 3729(b)(4)). The Contractor also affirms that it does not operate any diversity, equity, and inclusion (DEI) initiatives that are inconsistent with the Equal Protection principles of the Constitution and

the non-discrimination requirements of Federal law, as interpreted by the Supreme Court in *Students for Fair Admissions v. Harvard*, 600 U.S. 181 (2023).”

- (e) Payment system registration. All persons accessing the Delphi eInvoicing web-portal will be required to have their own unique user Delphi eInvoicing ID and password and be credentialed through login.gov.
- (1) Electronic authentication. See www.login.gov for instructions. Click on the following link for instructions on establishing a login.gov account: <https://login.gov/help/creating-an-account/how-to-create-an-account/>
 - (2) To create a login.gov account, the user will need a valid email address and a working phone number. The user will create a password and then login.gov will reply with an email confirming the email address.
 - (3) Vendor POC's who require access to the eInvoicing web-portal for invoice submission and payment tracking purposes will be required to provide their full name, email address, and current phone number to the agency POC to initiate the Delphi eInvoicing web-portal account. Vendor users and the agency POC will be notified via e-mail when the account is created. The vendor user will be provided detailed instructions for logging into their Delphi eInvoicing account. FHWA's agency POC is HCFA-10@dot.gov. For any general questions or issues accessing the iSupplier web-portal, please contact the ESC iSupplier helpdesk either at:
 - <https://einvoice.esc.gov/>
 - Call Delphi Help Desk at 1-866-641-3500, option #4, then option #3
 - (4) Training on Delphi. To facilitate use of DELPHI, comprehensive user information is available at <http://einvoice.esc.gov>.
 - (5) Account Management. Vendors are responsible for contacting the Delphi Help Desk when their firm's points of contacts will no longer be submitting invoices so they can be removed from the system. Instructions for contacting the Delphi Help Desk can be found at <http://einvoice.esc.gov>. To add new points of contacts, Vendors are to submit the name(s), email address(es) and phone number(s) to HCFA-10@dot.gov

If a user ID becomes inactive/times out due no activity by the POC, the Vendor shall contact HCFA-10@dot.gov with the full name, title, phone number, e-mail address, and user ID of the POC to be reactivated. To prevent being timed out due to no-activity, users should login once within 45 days of their last login.

- (f) Waivers. The Department of Transportation Financial Management officials may, on a case by case basis, waive the requirement to register and use the DELPHI eInvoicing System. Waiver request forms can be obtained on the DELPHI eInvoicing website (<http://www.dot.gov/cfo/delphi-einvoicing-system.html>) or by contacting the COR. All Vendors must explain why they are unable to use or access the Internet to register and enter payment requests.

All waiver requests shall be sent via mail to:

Director of the Office of Financial Management US Department of Transportation,
B-30 Office of Financial Management, Room W93-431

1200 New Jersey Avenue SE
Washington DC 20590-0001
or electronically to: DOTeInvoicing@dot.gov

The Director of the DOT Office of Financial Management will confirm or deny the request within approximately 30 days.

If a Vendor is granted a Waiver, Requests for Advance or Reimbursement and required supporting documents, shall be sent via regular U.S. Postal Service to the following address:

Federal Highway Administration Invoice Processing
P.O. Box 268865
Oklahoma City, OK 73126-8865
Attention: Amy Morrisette

Invoices submitted via an overnight service must use the following physical address:

MMAC FHWA/AMZ-150
6500 MacArthur Blvd.
Oklahoma City, OK 73169 Attention:

Express Delivery Point of Contact: Lead Account Technician, 405-954-8252

All invoices, regardless of submission method, must identify the Contract Specialist as the invoicing point of contact.

Final Invoices

For firm-fixed-price (FFP) contracts where supplies are delivered or services are performed, the final invoice is not subject to further contract settlement actions between the Government and the Contractor.

For non-FFP contracts, further contract settlement actions may exist where final invoices are not to be submitted yet until these contract settlement actions are resolved. For these contracts, the Contracting Officer will process final invoices as a routine part of the closeout process. When requested, the Contractor shall submit the final invoice directly to the Contracting Officer/ Contract Specialist along with the final closeout documents. When the final invoice is ready for payment, the Contracting Officer will inform the Contractor that the final invoice can be submitted through the iSupplier system.

(End of Local Clause)